

Sri K N Anil vs Smt Deepika Nair on 28 March, 2024

Author: H.B.Prabhakara Sastry

Bench: H.B.Prabhakara Sastry

IN THE HIGH COURT OF KARNATAKA AT BENGALURU

DATED THIS THE 28TH DAY OF MARCH, 2024

PRESENT

THE HON'BLE DR. JUSTICE H.B.PRABHAKARA SASTRY
AND

THE HON'BLE MR JUSTICE RAMACHANDRA D. HUDDAR

MISCELLANEOUS FIRST APPEAL NO.4374 OF 2015(FC)

BETWEEN:

Sri.K.N. Anil,
S/o. Sri. Narayan Nair,
Aged about 36 years,
Residing at Meenakshi Nilayam,
Subbaiahna Palya,
Maruthi Seva Nagar,
Bangalore 560 033.

.. Appellant

(By Sri. Bharath Kumar V., Advocate)

AND:

Smt. Deepika Nair,
D/o. Sri. Vijayachandran Nair,
Aged about 34 years,
Residing at Pradeep Bhavanam,
Akhaompudi,
Nagiarkulanagara P.O.
Alappuzha District,
Kerala State - 678 541

.. Respondent

(By Sri. Ashok B. Patil, Advocate)

This Miscellaneous First Appeal is filed under Section
19(1) of the Family Courts Act, 1964, with the following
prayers:

M.F.A.No.4374/2015

"(i) Call for the records in M.C.No.1106/2012 on the file of the Principal Judge, Family Court, at Bangalore;

(b) and be pleased to set aside the judgment dated 21.2.2015 passed by the Principal Judge, Family Court, at Bangalore, by allowing this appeal, and consequently allowing MC No.1106/2012;

(c) be pleased to grant such other reliefs as this Hon'ble Court deems fit in the circumstances of the case, including grant of costs throughout."

This Miscellaneous First Appeal having been heard through Physical Hearing/Video Conferencing Hearing and reserved for judgment on 05-03-2024, coming on for pronouncement this day, Dr.H.B.Prabhakara Sastry J. delivered the following:

JUDGMENT

Being aggrieved by the dismissal of his petition filed in the Court of the learned Principal Judge, Family Court, at Bangalore (hereinafter for brevity referred to as "the Family Court") under Sections 13(1)(ia) and 13(1)(iii) of the Hindu Marriage Act, 1955 (hereinafter for brevity referred to as "the Hindu Marriage Act") against the present respondent, under the judgment dated 21-02-2015, the petitioner in the Family Court has filed the present appeal.

2. The summary of the case of the appellant as a petitioner in the Family Court was that, the petitioner is an employee at the Hindustan Aeronautics Limited (HAL), Bengaluru. Though he is a native of Kerala State, however, he was born and brought up and settled in Bengaluru. His marriage with the respondent was solemnised according to Hindu rites on the date 07-05-2008, at a place called Harippad, Kerala. The respondent, being the only daughter to her parents was neither accustomed nor inclined to cook and do the other household chores. Ever since the marriage, the mother of the respondent used to interfere in the marital life by giving instructions over telephone to the respondent which resulted in her creating problems in the daily life. The respondent used to visit her parents house and used to stay there for months together. One such instance was when the petitioner, respondent and his parents had been to Ernakulam on the date 28-01-2009, to attend the marriage function of a relative scheduled to be held on the date 01-02-2009. Though the return journey was scheduled to be on the date 04-02-2009, however, the respondent showing her inclination to stay with her parents, did not return back to her matrimonial home along with the petitioner. Since the respondent did not return to her matrimonial home even after a month, the petitioner got issued a legal notice to her on the date 02-03-2009, asking her to return to her matrimonial home. The respondent (wife) sent an untenable reply making certain allegations of demand for dowry against her husband and her in-laws. Suspecting that the parents of the respondent are not allowing the respondent (wife) to join him, the petitioner approached the Nair's Service Society (NSS), Karayogam at Karthkappally, Harippad and requested them to intervene in

the matter. The NSS, Karayogam, discussed the matter in the presence of the petitioner, his parents, relatives and the respondent, her parents and her relatives and suggested the respondent to join her husband at Bengaluru. But the respondent and her parents were not amenable to the said suggestion.

It was further the contention of the petitioner in the Family Court that, thereafter, he filed a writ petition in the High Court of Kerala at Ernakulam in Writ Petition (Crl.) No.290/2010(S), wherein the Hon'ble High Court of Kerala, by its order dated 13-08-2010 recorded that the respondent would proceed with the petitioner to Bangalore to lead a happy and harmonious married life. Subsequent to the said order, the respondent, though came to stay with her husband in her matrimonial home, however, the said stay was too short, ending only for fifteen (15) days. Once again, in the first week of September 2010, she (the respondent) went back to her parents place where she has been staying even on the date of filing of the petition before the Family Court.

The petitioner further contended before the Family Court that, the respondent had some gynaecological problem and also suffering from mental illness and bouts of Schizophrenia. She was more attracted to her parents and brother in an emotional way and always used to chide the petitioner that she would give importance to them only and not to the petitioner. The petitioner was clear and the parents of the respondent also made him clear that, the respondent was not interested to continue her matrimonial life with him. Further, by the act of the respondent in taking away all her gold jewellery which were kept in the locker of the State Bank of India (SBI) at Bengaluru, the petitioner came to know that their marriage has been irretrievably broken down and that there was no chance of normal relationship between them. With this, he prayed to allow his petition filed under Sections 13(1)(ia) and 13(1)(iii) of the Hindu Marriage Act, for a decree of dissolution of his marriage with the respondent, solemnised on the date 07-05-2008, at Harippad, Kerala.

3. In response to the notice served upon her in the Family Court, the respondent (wife) appeared through her learned counsels and filed her detailed Statement of Objections in the matter.

4. In her Statement of Objection, though the respondent (wife) admitted her marital relationship with the petitioner (husband) and her marriage with the petitioner at a place called Harippad, Kerala, on the date 07-05-2008, according to the customs prevailing in their community, however, she specifically denied that she had ever been cruel to the petitioner (husband) and his parents and was not taking care of her husband and his family. She also denied that she was not attending to the day-to-day household chores and house keeping. She also denied all other averments made by the petitioner in his petition. She specifically denied that she did not want to return to Bengaluru on the date 04-02-2009 and wanted to stay with her parents. Though she did not deny the receipt of the legal notice dated 02-03-2009 by her, but contended that the allegations made in the notice were all far from truth. She denied that she had hidden from the petitioner her alleged condition of medical ill- health. She also denied that she was suffering from any mental illness much less Schizophrenia.

On the other hand, she contended that though she was very much willing and interested in joining her husband and leading a happy marital life with him, but the petitioner who is her husband did not create a conducive atmosphere for the same, on the other hand, she was always being treated

with some cruelty by her husband as well her in-laws. Her father-in-law demanded a sum of `5,00,000/- from her father prior to the marriage and also during her stay at her matrimonial home. She was subjected to constant demands thereafter. Ultimately, being unable to bear the harassment any longer, her father deposited the said sum in a Fixed Deposit in the name of the respondent in a Bank in Kerala, but the petitioner's parents were extremely annoyed and insisted that the deposit be transferred to a Bank in Bengaluru in the petitioner's name. Petitioner's mother is a very domineering woman and used to put the respondent to work in the house practically as a menial. Giving several alleged instances of allegations of cruelty and harassment said to have been meted to her in her matrimonial home, the respondent stating that still she was ready and willing to join her husband and lead a matrimonial life, prayed to dismiss the petition filed by her husband.

5. In support of his petition in the Family Court, the petitioner (husband) got examined himself as PW-1 and got marked seven documents from Exs.P-1 to P-7. The respondent (wife) got herself examined as RW-1 and no documents were got marked from her side.

6. After hearing the argument from both side, the Family Court framed the following points for its consideration:

"1. Whether the petitioner proves that subsequent to his marriage with the respondent he was subjected to cruelty by the respondent and if so he is entitled to the relief under Section (1)(ia) of the Act?

2. Whether the petitioner proves that the respondent has been incurably of unsound mind or has been suffering continuously or intermittently from mental disorder of such a kind and to such an extent that the petitioner cannot reasonably be expected to live with the respondent?

3. What order?"

7. Under the impugned judgment, while answering points No.1 and 2 in the negative, the Family Court proceeded to dismiss the petition filed by the petitioner (husband) under Sections 13(1)(ia) and 13(1)(iii) of the Hindu Marriage Act. It is against the said judgment and decree, the petitioner in the Family Court has preferred the present appeal.

8. The respondent (wife) herein is being represented by her learned counsel.

9. The Family Court's records were called for and the same are placed before this Court.

10. Learned counsel for the appellant (husband) and learned counsel for respondent(wife) are physically appearing in the Court. Heard their arguments. Perused the materials placed before this Court including the Family Court's records.

11. For the sake of convenience, the parties herein would be henceforth referred to as per their rankings before the Family Court.

12. Learned counsel for the petitioner (appellant) in his argument, in the opening sentence itself submitted that, though the petition before the Family Court was filed under Section 13 (1)(ia) and 13 (1)(iii) of the Hindu Marriage Act, however, he would not insist the present appeal of the petitioner for the relief under Section 13 (1)(iii) of the Hindu Marriage Act and would confine the present appeal only to Section 13 (1)(ia) of the Hindu Marriage Act.

Learned counsel for the petitioner (husband) submitted that, the very act of the respondent (wife) in leaving her matrimonial home immediately after fifteen days of her re-union subsequent to the order passed by the Hon'ble High Court of Kerala at Ernakulum in Writ Petition (Crl.)No.290/2010(S) dated 13-08-2010 itself would prove that the respondent (wife) has deserted her husband. The very suggestion made to PW-1 in his cross- examination that the petitioner did not try to bring the respondent back to her matrimonial home itself amounts to an admission that she (RW-1) was residing separately and she has never been ready and willing to join her husband in her matrimonial home and to lead a happy marital life. On the contrary, she has made false allegations of dowry demand and thus has subjected her husband and his family members to mental torture. The said false allegation of infidelity itself amounts to cruelty. However, the Family Court did not appreciate the evidence placed before it in its proper perspective and proceeded to dismiss the petition of the petitioner (husband), as such, the same warrants interference at the hands of this Court.

13. Per contra, the learned counsel for the respondent (wife) in his brief argument contended that, cruelty is neither alleged nor established by the petitioner(husband). The averment of alleged desertion are all self-imagined. It is the act and behaviour of the petitioner (husband) which made the respondent (wife) to stay separately, though she has been ready and willing to join him.

Learned counsel further contended that the alleged non-cooking, non-cleaning of utensils and non-washing of clothes cannot be termed as cruelty. The respondent (wife) has repeatedly made it clear that she has always been ready and willing to join her husband in her matrimonial home, however, the petitioner (husband) and his parents are not ready to take her back, as such, there is no proof of alleged desertion. Thus, the appeal filed by the petitioner deserves to be dismissed.

14. After hearing the learned counsels for the parties, the only point that arise for our consideration in this appeal is:

Whether the petitioner (husband) has proved beyond doubt that, there was alleged cruelty by the respondent (wife), attracting Section 13 (1)(ia) of the Hindu Marriage Act, 1955?

15. The admitted fact, as could be gathered from the materials placed before the Court is that, the petitioner (appellant) and respondent are husband and wife, whose marriage was solemnised on the date 07-05-2008, at a place called Harippad in Kerala State, according to the customs and rites prevailing in their community. It is also an admitted fact that at the time of the marriage and thereafter, the petitioner (husband) has been an employee in Hindustan Aeronautics Limited (HAL) at Bengaluru and was a permanent resident of Bengaluru, as such, the matrimonial home of the

respondent is Bengaluru.

16. The evidence of petitioner as PW-1 and the respondent as RW-1 are uniform in the above lines which stands further corroborated by the wedding invitation card at Ex.P-1 and their photograph at Ex.P-2.

17. The petition before the Family Court filed by the petitioner was under Sections 13(1)(ia) and 13(1)(iii) of the Hindu Marriage Act. However, apart from the alleged cruelty and desertion, the petitioner also contended that his wife (respondent) was suffering from some gynaecological problem and Schizophrenia. He contended both in his petition as well in his evidence as PW-1 that, his wife suffers from mental illness, bouts of Schizophrenia. Whenever she was in his house, she used to continuously take bath and keep the house clean by dusting always and also used to keep shouting at the petitioner for no reason. The same was vehemently denied in his cross-examination from the respondent's side as well in the evidence of the respondent as RW-1. However, except making such an allegation in his petition as well in his evidence as PW-1, the petitioner (husband) has not placed any documents, much less, any medical evidence or documents to corroborate his contention. Thus, the alleged medical ill-health and mental disorder was confined only to his allegation with lack of supportive evidence.

18. However, the learned counsel for the petitioner (husband) at the very outset, in his argument, fairly submitted that, he would not press on the ground under Section 13 (1)(iii) of the Hindu Marriage Act, but would confine the present appeal only for the relief under Section 13 (1)(ia) of the Hindu Marriage Act, sought in his petition before the Family Court. Thus, the petitioner (appellant) is required to establish that he was treated with cruelty by his wife to such an extent that it was not possible for him to lead a peaceful matrimonial life with the respondent (wife).

19. The Hindu Marriage Act does not define as to what 'cruelty' is. However, an attempt can be made in the light of various decisions of the Hon'ble Apex Court to understand the term 'cruelty' as a willful and unjustifiable conduct of such character of respondent so as to cause danger to life, bodily or mental or so as to give rise to a reasonable apprehension of such a danger that it would not be possible for the petitioner to lead a marital life with the respondent.

20. In the case of PARVEEN MEHTA Vs.INDERJIT MEHTA reported in (2002) 5 Supreme Court Cases 706, at paragraph 21 of its judgment, the Hon'ble Apex Court was pleased to observe as below:

"21. Cruelty for the purpose of Section 13(1)(i-a) is to be taken as a behaviour by one spouse towards the other, which causes reasonable apprehension in the mind of the latter that it is not safe for him or her to continue the matrimonial relationship with the other. Mental cruelty is a state of mind and feeling with one of the spouses due to the behaviour or behavioural pattern by the other. Unlike the case of physical cruelty, mental cruelty is difficult to establish by direct evidence. It is necessarily a matter of inference to be drawn from the facts and circumstances of the case. A feeling of anguish, disappointment and frustration in one spouse caused by the conduct of the other can only be appreciated on assessing the attending facts and circumstances in which the two partners of matrimonial life have been living. The inference has to be drawn from the attending facts and

circumstances taken cumulatively. In case of mental cruelty it will not be a correct approach to take an instance of misbehaviour in isolation and then pose the question whether such behaviour is sufficient by itself to cause mental cruelty. The approach should be to take the cumulative effect of the facts and circumstances emerging from the evidence on record and then draw a fair inference whether the petitioner in the divorce petition has been subjected to mental cruelty due to conduct of the other."

21. In the case of SAVITRI PANDEY VS. PREM CHANDRA PANDEY reported in (2002) 2 Supreme Court Cases 73, the Hon'ble Supreme Court held that 'cruelty' can be treated as mental cruelty when the husband or the wife who has claimed dissolution of marriage on the ground of mental cruelty has apprehension in his or her mind that it is harmful and injurious in the company of other side. However, it is well settled that, cruelty largely depends on the living condition of the parties to which they are accustomed to or their economic or social conditions or their culture or human values to which they attach importance. Hence, each case has to be decided on its own merits. The daily wear and tear cannot be treated as mental cruelty.

22. In the case of A. Jayachandra Vs. Aneel Kaur reported in AIR 2005 SUPREME COURT 534, at paragraph 10 of its judgment, the Hon'ble Apex Court was pleased to observe as below:

"10. The expression 'cruelty' has not been defined in the Act. Cruelty can be physical or mental. Cruelty which is a ground for dissolution of marriage may be defined as willful and unjustifiable conduct of such character as to cause danger to life, limb or health, bodily or mental, or as to give rise to a reasonable apprehension of such a danger. The question of mental cruelty has to be considered in the light of the norms of marital ties of the particular society to which the parties belong, their social values, status, environment in which they live. Cruelty, as noted above, includes mental cruelty, which falls within the purview of a matrimonial wrong. Cruelty need not be physical. If from the conduct of his spouse same is established and/or an inference can be legitimately drawn that the treatment of the spouse is such that it causes an apprehension in the mind of the other spouse, about his or her mental welfare then this conduct amounts to cruelty. In delicate human relationship like matrimony, one has to see the probabilities of the case. The concept, a proof beyond the shadow of doubt, is to be applied to criminal trials and not to civil matters and certainly not to matters of such delicate personal relationship as those of husband and wife. Therefore, one has to see what are the probabilities in a case and legal cruelty has to be found out, not merely as a matter of fact, but as the effect on the mind of the complainant spouse because of the acts or omissions of the other. Cruelty may be physical or corporeal or may be mental. In physical cruelty, there can be tangible and direct evidence, but in the case of mental cruelty there may not at the same time be direct evidence. In cases where there is no direct evidence, Courts are required to probe into the mental process and mental effect of incidents that are brought out in evidence. It is in this view that one has to consider the evidence in matrimonial disputes."

23. In the case of SAMAR GHOSH Vs. JAYA GHOSH reported in (2007) 4 Supreme Court Cases 511, our Hon'ble Apex Court was pleased to observe that there cannot be any comprehensive definition of "mental cruelty" within which all kinds of cases of mental cruelty can be covered. No Court should even attempt to give a comprehensive definition of mental cruelty. However, the Apex Court has identified some instances of mental cruelty as illustrations, but not exhaustive, in paragraph 101 of its judgment, which reads as below :

"101. No uniform standard can ever be laid down for guidance, yet we deem it appropriate to enumerate some instances of human behaviour which may be relevant in dealing with the cases of "mental cruelty". The instances indicated in the succeeding paragraphs are only illustrative and not exhaustive:

(i) On consideration of complete matrimonial life of the parties, acute mental pain, agony and suffering as would not make possible for the parties to live with each other could come within the broad parameters of mental cruelty.

(ii) On comprehensive appraisal of the entire matrimonial life of the parties, it becomes abundantly clear that situation is such that the wronged party cannot reasonably be asked to put up with such conduct and continue to live with other party.

(iii) Mere coldness or lack of affection cannot amount to cruelty, frequent rudeness of language, petulance of manner, indifference and neglect may reach such a degree that it makes the married life for the other spouse absolutely intolerable.

(iv) Mental cruelty is a state of mind. The feeling of deep anguish, disappointment, frustration in one spouse caused by the conduct of other for a long time may lead to mental cruelty.

(v) A sustained course of abusive and humiliating treatment calculated to torture, discomode or render miserable life of the spouse.

(vi) Sustained unjustifiable conduct and behaviour of one spouse actually affecting physical and mental health of the other spouse.

The treatment complained of and the resultant danger or apprehension must be very grave, substantial and weighty.

(vii) Sustained reprehensible conduct, studied neglect, indifference or total departure from the normal standard of conjugal kindness causing injury to mental health or deriving sadistic pleasure can also amount to mental cruelty.

(viii) The conduct must be much more than jealousy, selfishness, possessiveness, which causes unhappiness and dissatisfaction and emotional upset may not be a ground for grant of divorce on

the ground of mental cruelty.

(ix) Mere trivial irritations, quarrels, normal wear and tear of the married life which happens in day-to-day life would not be adequate for grant of divorce on the ground of mental cruelty.

(x) The married life should be reviewed as a whole and a few isolated instances over a period of years will not amount to cruelty. The ill conduct must be persistent for a fairly lengthy period, where the relationship has deteriorated to an extent that because of the acts and behaviour of a spouse, the wronged party finds it extremely difficult to live with the other party any longer, may amount to mental cruelty.

(xi) If a husband submits himself for an operation of sterilisation without medical reasons and without the consent or knowledge of his wife and similarly, if the wife undergoes vasectomy or abortion without medical reason or without the consent or knowledge of her husband, such an act of the spouse may lead to mental cruelty.

(xii) Unilateral decision of refusal to have intercourse for considerable period without there being any physical incapacity or valid reason may amount to mental cruelty.

(xiii) Unilateral decision of either husband or wife after marriage not to have child from the marriage may amount to cruelty.

(xiv) Where there has been a long period of continuous separation, it may fairly be concluded that the matrimonial bond is beyond repair. The marriage becomes a fiction though supported by a legal tie. By refusing to sever that tie, the law in such cases, does not serve the sanctity of marriage; on the contrary, it shows scant regard for the feelings and emotions of the parties. In such like situations, it may lead to mental cruelty."

24. Keeping in mind the above observations made by the Hon'ble Apex Court, if the evidence led by both petitioner as PW-1 and respondent as RW-1 is perused, it can be noticed that, the main and the first contention of the petitioner (husband) is that, though he, joined by his wife and parents had been to Ernakulam on the date 28-01-2009 to attend a marriage function there and were scheduled to return to Bengaluru on the date 04-02-2009, but, his wife did not join him on their return journey on the pretext that she wanted to stay for some more time with her parents. It is not his contention that he was not agreeable for the same. On the other hand, his own evidence shows that, he agreed for the same and returned back to Bengaluru with his parents without the company of his wife. However, his further contention is that, the wife who had promised to return within fifteen days did not return which made him to approach the NSS, Karayogam at Karthkappally, Harippad. As such, the said Association, after holding a meeting with both side, suggested the respondent (wife) to join the petitioner (husband) at Bengaluru, despite which, she did not join him which made him to prefer a writ petition in the High Court of Kerala at Ernakulam in Writ Petition (Crl.) No.290/2010(S). A copy of the judgment passed in the said writ petition on the date 13-08-2010 has been produced by the petitioner under Ex.P-7.

25. A perusal of the order passed by the High Court of Kerala, at Ernakulam, dated 13-08-2010, at Ex.P-7, would go to show that, after exhaustive and detailed discussion between the parties in the Court, both the parties came to a broad understanding and agreement and have settled their terms and disputes.

26. The Hon'ble High Court of Kerala at Ernakulam also issued few directions in the said writ petition, which inter alia, included that on the date 15-08-2010, the petitioner and respondent shall proceed to their place of residence at Bangalore. The petitioner (husband) had agreed that his wife shall be at liberty to take up employment at Bangalore and that he shall do everything possible to ensure that she is respectably employed at Bangalore. It was also agreed between the spouses that the gold ornaments kept by the wife in a Bank locker at Bangalore, operated jointly by both the spouses, shall be taken by her and placed in a bank locker to be operated by them jointly in Alappuzha District. It was also agreed between the parties that they shall visit the parents of the wife periodically, at least, twice a year.

27. According to the petitioner (husband), though the respondent (wife) returned to her matrimonial home subsequent to the order passed by the High Court of Kerala in the above mentioned writ petition, but she stayed in her matrimonial home only for fifteen (15) days. Later on, by collecting all her jewels from the Bank locker, she returned to her parents home and never turned back. It was also canvassed by petitioner's side that the very act of the respondent (wife) in taking away all her jewels and going back to her parents home amounts to cruelty and desertion practiced upon the petitioner.

28. On the other hand, it is the case of the respondent (wife) that after her return to Bengaluru as per the order of the Hon'ble High Court of Kerala at Ernakulam, she had visited her parents and stayed with them on four occasions between August 2010 and June 2011 which was only with the knowledge and consent of the petitioner. After her return to her parents home, even though she made several attempts to contact her husband over telephone, however, there was no proper response from her husband. Hence, she was unable to return to Bengaluru and join the petitioner (husband).

29. The respondent (wife) has attempted to show that she has made several attempts to join her husband (petitioner) in her matrimonial home. It was even suggested to PW-1 in his cross-examination from the respondent's side that even before NSS, Karayogam, the respondent submitted that the mistake was hers and that she be excused and taken back by her husband. Though PW-1 did not admit the said suggestion as true, however, by making the said suggestion it was shown from the respondent's side that being a wife taking the blame upon herself, at the earliest point of time, she has shown her intention to join her husband back, however, he was not co operative.

30. It was further suggested to PW-1 (petitioner) in his cross-examination that, since her readiness and willingness to join the petitioner (husband) was borne out in the document before the NSS, Karayogam, he (PW-1) has not produced those documents and has suppressed all those facts. After all these elicitations suggested in the cross-examination of PW-1, it was also suggested to PW-1 in

his cross-examination from the respondent's side that, at least as on the date of his cross-examination, since the respondent (wife) was ready to join him, the petitioner could have taken her back and given her a chance at least by staying with her for six months and thereafter if he felt so, he could have continued with the case. PW-1 did not accept the said suggestion also, but made it clear that, he was not prepared to take the risk. The reason is that the respondent screams and quarrels and goes back to her parental house and she also blackmails that she will file a dowry harassment case against him.

31. The other allegation of alleged dowry harassment by the respondent has been made by the petitioner (PW-1) at different places, however, without placing any cogent evidence to support his contention. The petitioner (husband) himself has made the allegation of alleged mental disorder of his wife (respondent) of Schizophrenia but failed to produce any documents in that regard. Further, in his above response to the suggestion made to him, he even alleged that his wife blackmails him, without substantiating the said allegation, in any manner.

32. Though PW-1 denied that, any demand for dowry, much less for a sum of `5,00,000/- was made by his father with the respondent's father, however, in his cross-examination, he stated that he does not know that a sum of `5,00,000/- was deposited in the name of the respondent, due to their harassment. Had really such a demand for the said sum was not made from the petitioner's side, then, the question of the respondent's father depositing the said amount in the name of the respondent would not have arisen. PW-1 has not denied that such a deposit was made in the name of his wife.

33. The petitioner as PW-1 though has made several allegations about the alleged cruelty said to have been practiced upon him, however, except his self-serving oral statements, he failed to specifically give the details of any such instances of alleged cruelty much less with corroboratory evidence, either oral or documentary.

34. Even according to the petitioner, the legal notice sent by him to the respondent as per Ex.P-3 is on the date 02-03-2009 i.e. much before he filing a writ petition in Writ Petition (Crl.)No.290/2010(S) in the High Court of Kerala at Ernakulam. Even in the said notice also, his main allegation is about the respondent (wife) not returning to her matrimonial home though all the family members were scheduled to return to Bengaluru, together, after attending the marriage at Ernakulam at Kerala, on the date 04-02-2009.

35. The respondent (wife) has given a reply to the said notice as per Ex.P-4 where she has denied the allegations made by her husband and alleged that it was her husband who deserted her without any lawful reason. It is thereafter the petitioner proceeded to file Writ Petition (Crl.)No.290/2010(S), which ended in the form of a settlement between the parties as per Ex.P-7. Admittedly, before institution of M.C.No.1106/2012 before the Family Court from which the present appeal has arisen, the petitioner had not issued any notice upon his wife. Admittedly, neither of the parties have filed any petition seeking the relief of restitution of conjugal rights.

36. The respondent (wife) who got herself examined as RW-1, has, inter alia, stated that her husband (petitioner) has only been insisting on divorce without giving any convincing reason for the same. She stated that though she was suffering with some minor gynaecological problem, however, she suffered from no other physical or mental problem or mental illness or bouts of Schizophrenia. She reiterated that even on the date of her evidence also, she was ready and willing to seek her husband's and his parent's forgiveness and make every sincere effort to maintain a harmonious marital relationship with the petitioner. However, the petitioner has not shown any response in the cross-examination of RW-1 on the above evidence of the respondent (RW-1).

37. RW-1 even denied that, from September 2010, she (respondent-wife) has been continuously residing at her parental house at Harippad, Kerala. Though the learned counsel for the petitioner (appellant) contended that, the suggestion made to PW-1 in his cross-examination that the petitioner did not try to bring her back when she went to Kerala after taking the jewels with her in June 2011 shows that, she has deserted the petitioner, however, the further evidence in the form of suggestion to PW-1 in the very same cross-examination would go to show that, the petitioner (PW-1) had been away from Bengaluru on an official tour and that she was waiting for his return and a call from him asking her to come back to her matrimonial home. Thus, a mere stray suggestion that the petitioner did not try to call his wife back cannot be construed as the wife had deserted her husband and she intended to reside permanently away from him. Had she really intended and decided to stay away from her husband without any reasons or excuses, then, she would not have repeatedly stated in her objections Statement, in the cross-examination of PW-1 as well in her evidence as RW-1 that, she has always been ready and willing to join her husband (petitioner) at her matrimonial home.

38. The above intention of the respondent (wife) to join her husband back and she having no intention to stay away from him and thus subjecting him to mental cruelty gets further support from the development that has taken place during the pendency of this appeal.

39. During the pendency of this appeal, i.e. on the date 13-02-2024, a petition showing to be a memorandum of compromise petition and an interlocutory application - I.A.No.1/2024 under Order XXIII, Rule 3 of the Code of Civil Procedure, 1908 came to be filed in the matter, showing to have been filed by both parties along with their learned counsels jointly. In the said alleged compromise petition, it was mentioned that both the parties have entered into a compromise and have decided to extinguish the present lis between them on the terms and conditions which inter alia included that the petitioner (appellant) has to pay a sum of `20,00,000/- in favour of the respondent (wife) in lieu of maintenance and the respondent (wife) is shown to have accepted the same as One Time Settlement and agreed to forego all her rights to seek any maintenance. It was also shown that the wife has agreed to withdraw her petition in Criminal Misc.164/2023 said to be pending on the file of the learned Principal Judge, Family Court, Bengaluru, filed under Section 125 of the Code of Criminal Procedure, 1973, against the present petitioner. With this, it was shown that both of them have agreed for a decree of divorce, dissolving their marriage solemnised on the date 07-05-2008.

40. When the said compromise petition along with I.A.No.1/2024 came up for hearing before the Court on the date 21-02-2024, both the parties along with their respective learned counsels were physically present in the Court.

41. In the process of enquiry with the parties, when the Court enquired the respondent (wife), she, in very clear and unequivocal terms repeatedly stated before the Court that, she has never intended to put an end to her matrimonial relationship with the appellant (husband) and that even on that day, she wanted to join the petitioner back. However, she was forced to subscribe her signature to the application and also the memorandum of compromise petition, threatening that in case if she fails to put her signature, immediately, a decree of divorce would be obtained by the appellant i.e her husband. The said submission of the respondent (wife) made before the Court was ascertained by repeatedly asking her to understand as to what she was submitting before the Court, however, she adhered to her original submission which she reiterated.

42. It is considering her said submission, this Court, opining that the memorandum of compromise and the joint application - I.A.No.1/2024 were not made with free consent of the respondent herein, proceeded to reject the memorandum of compromise petition and also I.A.No.1/2024. These details have been referred to in the order sheet dated 21-02-2024 in the matter. Thus, it is crystal clear that, from the beginning, till the date 21-02-2024, the respondent (wife) has been making it clear that, she has always been ready and willing to join her husband in her matrimonial home and as observed above, she was even ready to seek her husband's and also his parents forgiveness and to take her back. However, stating that she herself has left his company and joined her parents and was frequently visiting her parents, the petitioner (husband) has determined not to take her back. Therefore, the allegation of cruelty and desertion having not been proved by the petitioner, it is the stubbornness of the petitioner that he does not want to take back his wife, alone stands established.

43. In the above context, it also cannot be ignored that the respondent (wife) as RW-1 in her cross-examination at paragraph 20, has voluntarily stated that the petitioner has married a girl at Bangalore and Girija Venugopal, the aunt of the petitioner has informed the said fact to her and that she can produce her aunt and she can even summon her aunt before the Court for that purpose. However, the said statement of RW-1 that the petitioner has undergone a second marriage and that she has evidence to that effect, has not been denied from the petitioner's side. Therefore, it further goes to show that the petitioner himself having determined to get his marriage with the respondent dissolved in some way or the other, has never been willing to take back his wife despite her repeated offering to join him back and tendering her apologies even for the alleged irregularities which she says have never been committed by her. She has even stated in her evidence that her several attempts to call him over phone to ask him as to when he would take her back have went in vain as those calls were not at all picked/received by him.

44. In her cross-examination at paragraph 18, the respondent as RW-1 has stated that, while she returned to Harippad in June 2011, her husband (petitioner) gave her a sum of `100/- towards travelling expenses and told her not to call him again after reaching Harippad. She categorically denied that there was no chance of re-union but she volunteered to state that if petitioner agrees she was then also ready to join and stay with him. Thus, repeatedly, at several places, the respondent (wife) has been showing that she has been ready and willing to join her husband and there were justifiable reasons for her to stay with her parents for some time anticipating/expecting that her husband would respond to her calls and take her back. However, her husband (petitioner) who, according to her, has undergone a second marriage, has determined not to take her back.

45. Under the said circumstance of the case, where the respondent could state and substantiate with reasons as to what made her to stay away from the matrimonial home and also from the petitioner for some time and shown her readiness, willingness and inclination to join her matrimonial home and to lead a happy marital life on all possible occasions, but the act, behaviour and attitude of the petitioner in making allegations of alleged cruelty and desertion against his wife (respondent), which he has failed to substantiate and prove the same, would only go to show that the petitioner (appellant) though has made allegations of alleged cruelty and extended the same even to the aspect of alleged desertion also, however, has utterly failed to prove either of them.

46. Since it is considering the materials placed before it in its proper perspective, the Family Court has rightly arrived at a finding holding that the petitioner has not made out any grounds to allow the petition and proceeded to dismiss the petition, we find no reasons to interfere in it.

Accordingly, we proceed to pass the following:

ORDER [i] The appeal filed by the appellant (husband) is dismissed as devoid of merit;

Registry to transmit a copy of this judgment to the concerned Family Court along with its records, immediately.

Sd/-

JUDGE Sd/-

JUDGE BMV*